

		time-consuming job of Deputy Director of Administration for the Riverside District Attorney. The court upheld Woolery's choice because either would have been proper, and neither choice would have deceived the voter. However, the court found that Woolery's victory did not shed light on his views as a candidate, but briefly related to one aspect of his work experience. (<i>Id.</i> at p. 1057.) Here, Schneider's preferred designation as educator likely would have deceived the voters into believing she was a certified teacher or some other type of teaching professional, while her correct designation as elementary library media technician accurately reflects her position. Wu's declaration established the Capistrano Unified School District provides a description of Schneider's actual position and educational experience is a high school degree or its equivalent and the only license is a driver's license. Schneider's opposition does not address the amount of fees sought by Wu. Failure to challenge a contention in a brief results in the concession of that argument. (<i>DuPont Merck Pharmaceutical Co. v. Sup. Ct.</i> (2000) 78 Cal.App.4th 562, 566.) The court finds attorney Mark Rosen's hourly rate of \$500 and his 17.8 hours of work reasonable. Petitioner to give notice.
9	D&S Washout Systems, Inc. vs. Lennar Homes of California LLC 30-2024-01404442-CU-BC-CJC	Application for Writ of Attachment Continued to 1/24/2025 at parties' request.
10	National Funding, Inc. vs. The Meat Shop of Indianapolis Inc. 30-2024-01375055-CU-BC-CJC	Plaintiff's Motion for Summary Judgment, or in the Alternative, Summary Adjudication Plaintiff National Funding, Inc.'s unopposed motion for summary judgment against Defendants The Meat Shop of Indianapolis Inc. and Larry Miller Jr. is GRANTED. <u>First Cause of Action for Breach of Contract against The Meat Shop of Indianapolis, Inc. ("Borrower"):</u> "To prevail on a cause of action for breach of contract, the plaintiff must prove (1) the contract, (2) plaintiff's performance of the contract or excuse for nonperformance, (3) defendant's breach, and (4) resulting damage to the plaintiff." (<i>Richman v. Hartley</i> (2014) 224 Cal.App.4th 1182, 1186.)